

Tentative Rulings for August 3, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2508171	COUNTY OF RIVERSIDE VS DUKE MELLON WEST, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION FOR ATTORNEY'S FEES

Tentative Ruling:

The hearing on the motion is continued to August 20, 2026, at 8:30 a.m. Moving party is ordered to give notice.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502294	CITY OF RIVERSIDE VS BLUE BANNER COMPANY, INC.	MOTION FOR LEAVE TO FILE A FIRST AMENDED COMPLAINT BY CITY OF RIVERSIDE

Tentative Ruling:

The court grants the City's motion for leave to file a first amended complaint (FAC). Plaintiff City is ordered to file and serve the FAC within ten (10) days. Thereafter, Defendants are ordered to file and serve their answer or other pleading within ten (10) days.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503346	THOMAS VS ANIMAL HOSPITAL OF EAGLE GLEN	MOTION TO COMPEL DEPOSITION ANSWERS AND REQUEST FOR MONETARY SANCTIONS BY AUDREY THOMAS

Tentative Ruling:

This motion was filed no July 6, 2026. The proof of service provides that the motion, separate statement, *Declaration of Ben Twisk*, and proposed order were electronically served, but there is no Declaration of Ben Twisk. Instead, a Declaration with Separate Exhibits D & E was rejected on July17, 2026, with no indication who the author is. Presumably, this would be the meet and confer declaration (and would also include any exhibits referenced in the motion). The moving papers reference meet and confer efforts, referencing the Twisk declaration, which is not part of the court record. Without the declaration, the court cannot properly analyze this motion, starting with the threshold meet and confer requirement.

The hearing on the motion is continued to August 31, 2026, at 8:30 a.m., to allow movant to file the Declaration of Ben Twisk, which must be filed by no later than August 7, 2026.